

Rakesh Kumar v. U.P. Power Corpn. Ltd. & Others

Allahabad High Court · Division Bench · 7 September 2009 · Writ-C No. 47408 of 2009 · **Listed 14.9.2009; instructions sought on cl. 8.1(b) theft assessment**

HEADNOTE

Interlocutory listing of a writ against recovery on a theft assessment. The Division Bench put the matter in the supplementary list for 14 September 2009 and directed counsel for U.P. Power Corporation Ltd. to take instructions on whether paragraph 8.1(b) of the U.P. Electricity Supply Code, 2005 was followed before recovery was initiated. No merits determination.

FACTUAL SUMMARY

Rakesh Kumar filed Writ-C No. 47408 of 2009 in the Allahabad High Court against U.P. Power Corporation Ltd. and others after recovery proceedings were started against him. The dispute concerned an assessment treated as a theft case under the U.P. Electricity Supply Code, 2005. Counsel for the Corporation was present. The petition came up on 7 September 2009 still at the listing stage, with no material yet on whether the prescribed theft-assessment procedure had been observed before recovery.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

listing; instructions on cl. 8.1(b) theft assessment before recovery

HOLDING

Writ listed for 14 September 2009 in the supplementary list. Meantime, counsel for U.P. Power Corporation Ltd. to seek instructions whether the procedure in paragraph 8.1(b) of the U.P. Electricity Supply Code, 2005, for assessment as a theft case, was followed before recovery proceedings were initiated against the petitioner. Merits of the 8.1(b) challenge not decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARAGRAPH 8.1(B) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS FOLLOWED IN MAKING THE THEFT ASSESSMENT BEFORE RECOVERY WAS INITIATED

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